

TENTATIVE RULINGS for LAW and MOTION

March 10, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **800 Homeowners in El Macero v. El Macero Homeowners
Association 9 Board Members
Case No. CV2025-0400**

Hearing Date: **March 10, 2026** **Department Fourteen** **9:00 a.m.**

The Coury **DECLINES** to rule on plaintiff Richard Lauckhart’s request for a hearing date to deal with plaintiff’s January 5, 2026, filing in this proceeding. Given the Judgment [of dismissal] entered on January 22, 2026, the Court lacks subject matter jurisdiction to determine this request. (See *Hagan Engineering, Inc. v. Mills* (2003) 115 Cal.App.4th 1004, 1008 [in the absence of granting a motion under Code of Civil Procedure section 473 to vacate a dismissal, the court is without subject matter jurisdiction of the old action].)

The request does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Davis Hospitality Fund, LP v. Royal Ganesh, LLC et al.**
 Case No. CV2025-0257

Hearing Date: **March 10, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff's motions to compel as to defendants:

Based on the parties' joint statement re discovery motions, plaintiff Davis Hospitality Fund, LP's ("plaintiff") amended motion to compel production of documents is **CONTINUED** to **June 11, 2026**, at 9:00 a.m. in Department Eleven. The Court also notes plaintiff's withdrawal of its amended motion to compel discovery responses.

As to plaintiff's amended motion to compel production of documents, the parties are **DIRECTED** to file a joint statement regarding meet and confer efforts and an update on: (1) defendants Ashok Patel and Royal Ganesh, LLC's responses to these discovery requests; and (2) the remaining issues in plaintiff's motion. The joint statement must be filed by **May 28, 2026**.

Plaintiff's request for ruling re motion to compel production from third parties:

Parties are **DIRECTED TO APPEAR**.

TENTATIVE RULING

Case: Kays et al. v. FCA US LLC et al.
Case No. CV2025-1760

Hearing Date: March 10, 2026 **Department Fourteen** **9:00 a.m.**

The Court reminds defendant FCA US LLC of the memorandum page length limitations. (Cal. Rules of Court, rule 3.1113(d) [stating that “no opening or responding memorandum may exceed 15 pages”].) “[n]o reply or closing memorandum may exceed 10 pages.”) In the future, the Court may decline to consider any argument or legal authority found in pages exceeding the maximum permitted number of pages.

The Court rules on defendant’s demurrer to plaintiffs Robert Kays and Jane Kays’ first amended complaint as follows:

- Defendant’s demurrer to the first, second, and third causes of actions [brought pursuant to Civil Code section 1793.2] on the ground that these causes of action are time-barred by the statute of limitations and statute of repose found in Code of Civil Procedure section 871.21 is **OVERRULED**. (Code Civ. Proc., §§ 430.10, subd. (e); see *Bell v. Bank of California* (1908) 153 Cal. 234, 245.) The Court finds that defendant fails to show that it elected to proceed under Code of Civil Procedure section 871.29 because this evidence presented on this issue is extrinsic to the first amended complaint and defendant did not request that the Court judicial notice of it. (Code Civ. Proc., § 871.20, subd. (a); see *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.) Further, new arguments may not be raised for the first time in a reply brief. (*Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited].)
- Defendant’s demurrer to the fourth cause of action for breach of implied warranty on the ground that it is time-barred by the four-year statute of limitations is **OVERRULED**. (Code Civ. Proc., §§ 430.10, subd. (e); see *Bell, supra*, 153 Cal. at p., 245.) While the Court finds that a cause of action based on a latent defect has a limited prospective existence beyond the date of sale, no legal authority has been provided setting forth how the Court determines the date the statute of limitations begins to run when a latent defect is alleged. (See *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1303-1304, 1309 [“The implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale.”].)
- Defendant’s demurrer to the sixth cause of action for fraudulent inducement – concealment on the ground that it is time-barred by the three-year statute of limitations is **OVERRULED**. (Code Civ. Proc., §§ 430.10, subd. (e); see *Bell, supra*, 153 Cal. at p., 245.) The Court finds that plaintiffs’ delay in discovering the alleged fraud was excusable and that the delayed discovery doctrine applies. (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110 [“Under the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her.”]; *Johnson v. Ehrgott* (1934) 1 Cal.2d 136, 137-138; see *Broberg v. The Guardian Life Ins. Co. of America* (2009) 171 Cal.App.4th

912, 921; FAC, ¶¶ 47 – 50, 57 – 60, 88 – 90.) The Court also notes that the date plaintiffs discovered defendant’s alleged fraud is not identified in the first amended complaint; thus, the Court cannot determine if plaintiffs complied with the three-year statute of limitations set forth in Code of Civil Procedure section 338. (See *Jolly, supra*, 44 Cal.3d at p. 1112 [when a plaintiff reasonably should have discovered facts for purposes of the accrual of a cause of action may only be decided as a matter of law if the allegations in the complaint and facts properly subject to judicial notice can support only one reasonable conclusion]; FAC, ¶ 51.)

- Defendant’s demurrer to the sixth cause of action for fraudulent inducement – concealment on the ground that it fails to allege facts sufficient to state a cause of action is **OVERRULED**. (Code Civ. Proc., §§ 430.10, subd. (e).) The Court finds that plaintiffs have sufficiently alleged facts to state this cause of action. (*Bader v. Johnson & Johnson* (2022) 86 Cal.App.5th 1094, 1131; FAC, ¶¶ 11 – 32, 51, 88 – 90.)
- Defendant’s demurrer to the sixth cause of action for fraudulent inducement – concealment on the ground that it fails to allege a transactional relationship giving rise to a duty to disclose is **OVERRULED**. (Code Civ. Proc., §§ 430.10, subd. (e).) The Court finds that plaintiffs have sufficiently alleged facts to state this cause of action. (*Bader, supra*, 86 Cal.App.5th at p. 1131 [where a fiduciary relationship does not exist, a transaction relationship, such as one between a buyer and a seller, or any contractual relationship, is sufficient to create a duty to disclose]; FAC, ¶¶ 11 – 32, 51, 88 – 90.)
- Defendant’s demurrer to the sixth cause of action for fraudulent inducement – concealment on the ground that it is barred by the Economic Loss Rule and independent tort principle as plaintiffs cannot establish the elements of their fraudulent concealment claim independently of the parties’ contractual rights and obligations is **OVERRULED**. (Code Civ. Proc., §§ 430.10, subd. (e).) The Court finds that the economic loss rule does not bar this cause of action. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645; *Erlich v. Menezes* (1999) 21 Cal.4th 543, 551-552; *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 840 – 841, 843, 844 [“Fraudulent inducement claims fall within an exception to the economic loss rule recognized by our Supreme Court.”]; FAC, §§ 3 – 5, 27, 58, 92 – 94.) The Court notes that the case of *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, is distinguishable because the California Supreme Court stated that it was not expressing any opinion on the application of the economic loss rule to claims based on fraudulent inducement by concealment. (*Rattagan*, at p. 41, fn. 12.)

The notice of demurrer does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Scott v. Performance Food Group, Inc.**
 Case No. CV2024-0729

Hearing Date: **March 10, 2026** **Department Eleven** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR** for a hearing on plaintiffs Steven Scott and Victor August's unopposed motion for preliminary approval of class and PAGA action settlement. (Cal. Rules of Court, rule 3.769(c), (d).)

TENTATIVE RULING

Case: **U.S. Bank National Association v. Herrera**
Case No. CV2025-1648

Hearing Date: **March 10, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff US Bank National Association's motion for summary judgment or in the alternative summary adjudication is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 437c, subds. (p)(1), (f)(2).) Plaintiff failed to serve the motion electronically on defendant John D. Herrera's counsel as required. (Code Civ. Proc., § 1010.6, subds. (e), (i); Cal. Rules of Court, rule 2.251(c); YCR 7.2.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Zaragoza v. Yates**
Case No. CV2025-2270

Hearing Date: **March 10, 2026** **Department Fourteen** **9:00 a.m.**

Motion to quash:

The Court, in its discretion, considers plaintiff Justin Zaragoza’s untimely opposition, filed on March 3, 2026. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers”].)

Despite plaintiff’s notice of hearing unavailability, the Court declines to continue the hearing. Plaintiff represents that he will be available to appear remotely, and this Court permits remote appearances for civil proceedings. (See YCR 2.4(c) [“Remote appearance is authorized but not mandated for all civil proceedings...”].)

Defendant Melissa Yates’ motion to quash for lack of jurisdiction, non-service, forum nonconveniens is **GRANTED**. (Code Civ. Proc., § 418.10, subd. (a)(1).) “When a defendant challenges that jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.” (*Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 793, citation and quotation marks omitted.) While “the filing of a proof of service creates a rebuttable presumption that the service was proper,” this “presumption arises only if the proof of service complies with the applicable statutory requirements.” (*Id.* at p. 795.) Defendant challenges jurisdiction by filing this motion to quash, asserting that she was never served with the summons and complaint. (Yates decl., ¶ 2.) As the proof of service does not demonstrate compliance with applicable statutory requirements, there is no rebuttable presumption. (See Code Civ. Proc., § 415.20, subd. (b); Motion, Exhibit B.) Plaintiff has not satisfied his burden to show proper service on defendant. (See *Floveyor Internat., Ltd., supra*, 59 Cal.App.4th at p. 793.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for sanctions:

Defendant’s motion of CCP § 128.5 motion for sanctions against plaintiff’s complaint and motion of CCP § 128.7 motion for sanctions against plaintiff’s complaint are **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 128.5, 128.7.) Defendant did not file these motions at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).)

The notice of motion provides notice of this Court’s tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.